investigation in which the grand jury were then engaged. *Hale* v. *Henkel*, 201 U. S. 43; *McAlister* v. *Henkel*, 201 U. S. 90; *Consolidated Rendering Co.* v. *Vermont*, 207 U. S. 541; *United States* v. *Am. Tobacco Co.*, 146 Fed. Rep. 557.

Wilson was not required by the subpœna, nor by any of the proceedings thereon, "to be a witness against himself." The subpœna called for a book which belonged to the United Wireless Telegraph Company, which had come into his physical custody simply as an officer of that company, and had been recalled from such custody by formal action of the board of directors. He was not protecting himself in the possession of his own books nor refusing to be a witness against himself, but was obstructing the company and its representatives, other than himself, in the performance of an order of the court for the production of books of the company, which they were willing to perform. *State* v. *Davis*, 108 Missouri, 666; *State* v. *Donovan*, 10 N. Dak. 203; *People* v. *Henwood*, 123 Michigan, 317; *State* v. *Farnum*, 73 S. Car. 165; *State* v. *Davis*, 69 S. E. Rep. (W. Va.), 639; *L. & N. R. R. Co.* v. *Commonwealth*, 21 Ky. Law Rep. 239; *McElree* v. *Darlington*, 187 Pa. St. 593; *Pray* v. *Blanchard Co.*, 95 App. Div. (N. Y.) 423; *People* v. *Coombs*, 158 N. Y. 532; *Ex parte Hedden*, 90 Pac. Rep. (Nev.) 737; *Langdon* v. *People*, 133 Illinois, 382; *Bradshaw* v. *Murphy*, 7 Car. & Paine, 612; *Evans* v. *Moseley* 2 Dowling's P. C. 364; *Perry* v. *Gibson*, 1 Adolphus & Ellis, 48; *Sherman* v. *Barrett*, 1 McMullan (S. Car.), 96; *United States* v. *Armour & Co.*, 142 Fed. Rep. 808.

Mr. Justice Hughes delivered the opinion of the court.

These three cases involve the same question. The first is a writ of error to the Circuit Court to review a judgment committing the plaintiff in error for contempt. The second is an appeal from an order of the Circuit Court dismissing a writ of *habeas corpus* sued out after such com-